

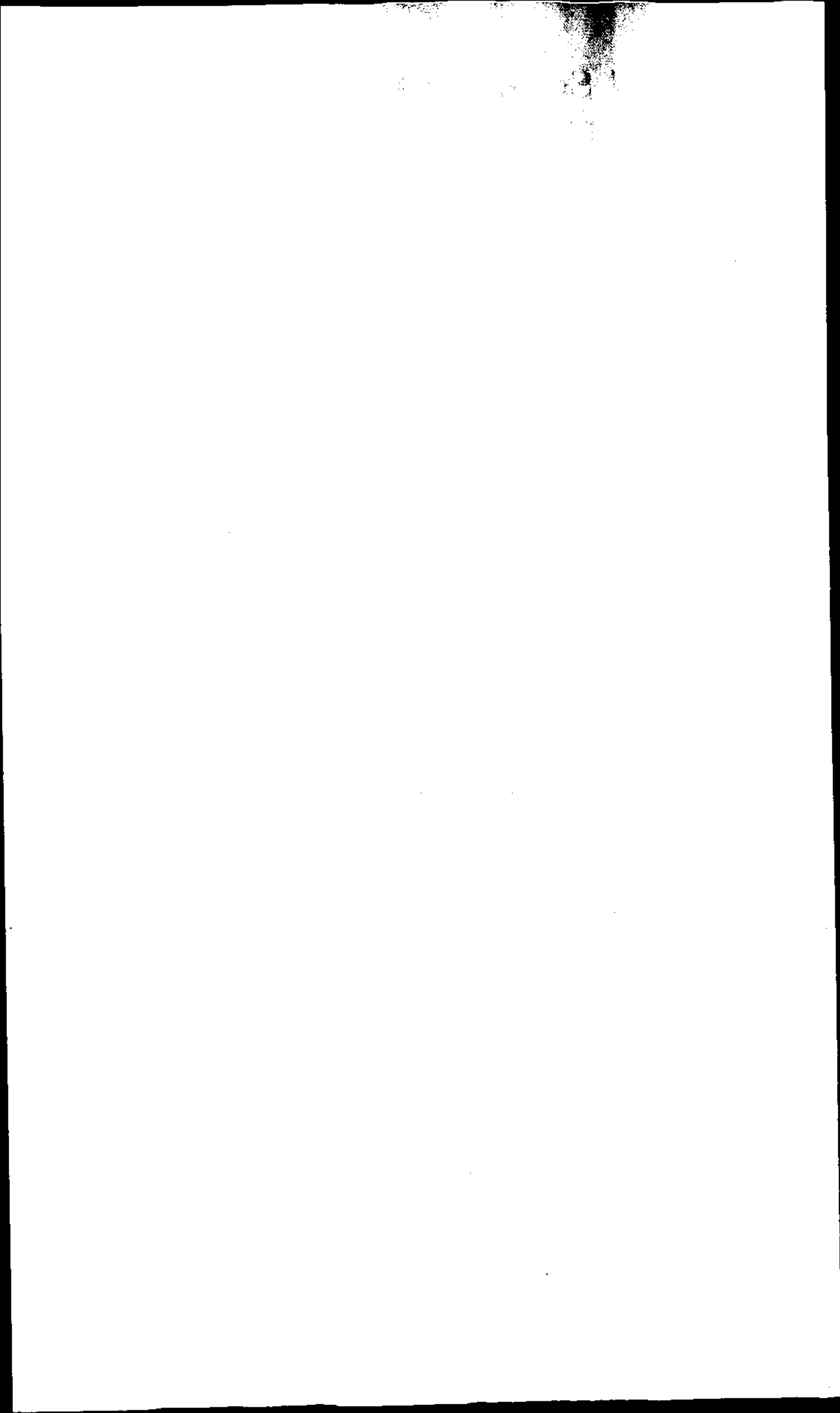
Royal School for Deaf Children Margate Act, 1958

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ARRANGEMENT OF SECTIONS

Section

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CHAPTER xl

An Act to confer further powers on the Royal School for Deaf and Dumb Children Margate to change the name of the said school and for other purposes.
[23rd July 1958.]

WHEREAS in or about the year seventeen hundred and ninety-two an institution was formed called the Asylum for the Education of the Deaf and Dumb Children of the Poor for the purpose of providing an asylum where deaf and dumb children of poor persons in Great Britain might be clothed and maintained and might be educated and instructed in religious and useful knowledge agreeable to the formalities of the Church of England and in particular might be instructed in articulation artificial speaking reading writing from dictation by signs and in such other special knowledge as would be beneficial and useful to deaf and dumb persons of both sexes:

And whereas the objects and purposes of the said institution were subsequently extended to the education and instruction in the same manner of deaf and dumb children whose friends are able to pay for their board and also to providing out of the said institution apprentice fees or premiums for the purpose of apprenticing pupils to some useful trade upon their leaving the asylum and in some parts of the country auxiliary associations were also formed in connection with the said institution:

And whereas the said institution was and is supported by the donations legacies and annual voluntary subscriptions of benevolent persons:

And whereas by the Asylum for the Deaf and Dumb Poor Act 1862 the president vice-presidents treasurer and governors for the time being of the institution were incorporated as a

corporate body by the name of "The President Vice-Presidents Treasurer and Governors of the Asylum for the Deaf and Dumb Poor" (hereinafter referred to as "the Corporation"):

And whereas in or about the year eighteen hundred and sixty-three the Corporation under the powers of the said Act of 1862 purchased and acquired certain lands at Margate in the county of Kent and erected thereon an asylum known as the Royal School for Deaf and Dumb Children Margate:

And whereas the Corporation after the erection of their asylum at Margate closed their original institution in the Old Kent Road Southwark and sold the site thereof except a small portion of such site on which houses were built:

And whereas by the Royal School for Deaf and Dumb Children Margate Act 1915 the name of the Corporation was changed to the "Royal School for Deaf and Dumb Children Margate" and the Corporation under the powers of that Act purchased and acquired by agreement additional lands for the purpose of extending and have extended their institution at Margate and have provided separate accommodation for children of more tender age than those formerly benefited by the institution:

And whereas the powers of investment of the Corporation are unduly restricted and it is expedient in order to carry out more effectively the objects and purposes of the Corporation that the powers of investment of the Corporation should be enlarged and extended as provided by this Act:

And whereas it is expedient that the Corporation should be authorised to alter their present name and to adopt the name of the "Royal School for Deaf Children Margate":

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1.—(1) This Act may be cited as the Royal School for Deaf Children Margate Act 1958.

(2) The Asylum for the Deaf and Dumb Poor Act 1862 the Asylum for the Deaf and Dumb Poor Act 1883 the Royal School for Deaf and Dumb Children Margate Act 1915 and this Act may be cited together as the Royal School for Deaf Children Margate Acts 1862 to 1958.

Short and
collective
titles.

2. In this Act unless the context otherwise requires—

Interpretation.

“ the Act of 1862 ” means the Asylum for the Deaf and Dumb Poor Act 1862;

“ the committee of management ” means the committee of management of the Corporation constituted and appointed as provided by the laws rules and regulations of the Corporation;

“ the Corporation ” means the Royal School for Deaf and Dumb Children Margate.

3.—(1) Any part of the capital or income of the Corporation which is not required for the time being for the purposes of the Corporation may be invested and may thereafter remain invested until so required. Powers of investment.

(2) Investments held by the Corporation by virtue of the power conferred by the preceding subsection may consist either wholly of investments for the time being authorised by law for the investment of trust funds (in this section referred to as “ trustee securities ”) or partly of trustee securities and partly of investments made in or for any other of the modes or objects specified in subsection (4) of this section:

Provided that no such capital or income shall be invested in any investments not being trustee securities if the value of the investments of the Corporation which are trustee securities is then or would thereby become less than one-third of the value for the time being of all the investments of the Corporation and of the moneys then in the hands of the Corporation and which represent or are such capital or income of the Corporation as is mentioned in subsection (1) of this section.

(3) Subject to the provisions of the last preceding subsection investments of the Corporation may at any time be varied into or for any of the modes or objects of investment specified in subsection (4) of this section.

(4) The modes or objects of investment referred to in the last two preceding subsections are—

(a) trustee securities;

(b) freehold ground rents well secured in accordance with the report of a duly qualified valuer which ground rents the Corporation may purchase take receive and hold without licence in mortmain;

(c) any investment or security which immediately before the passing of this Act was held by the Corporation;

(d) the public stocks or funds or government securities of any part of the United Kingdom and colonies or of any country mentioned in subsection (3) of section 1 of the British Nationality Act 1948;

(e) such of the following investments as in the opinion of the committee of management are generally considered to be readily marketable and to form a good and safe security:—

(i) deposit receipts bonds debentures debenture stocks mortgages or securities of any corporation company or body whether municipal railway public utility commercial industrial investment trust mortgage insurance banking or of any other class registered or incorporated in the United Kingdom of Great Britain and Northern Ireland;

(ii) guaranteed lien preference preferred ordinary deferred or common stocks or shares (such stocks or shares not being subject to any liability for calls or other payments) of any such company as aforesaid being a company which has an issued capital of the nominal value of not less than five hundred thousand pounds and which has paid dividends upon its ordinary capital at the rate of at least four per centum per annum for at least the five years next before the time of investment (of which fact a letter purporting to be signed by the secretary of the company or by a banker or member of a firm of bankers or by the secretary or manager of a joint stock bank or of any branch thereof shall be sufficient evidence) such stocks or shares having a quotation on the London Stock Exchange and not being to bearer:

Provided that none of the funds of the Corporation which are to be invested in or for any of the modes or objects specified in paragraphs (a) (d) or (e) of this subsection shall be invested in any particular investment stock fund or security save on the recommendation of a person carrying on one or more of the following businesses in the city of London namely the business of a banker a merchant banker a finance house an issuing house or a stockbroker and the Corporation shall employ such a person to keep the funds of the Corporation under review at intervals not exceeding three months.

(5) The Corporation may retain any investment or other property real or personal which was held by the Corporation immediately before the passing of this Act or which may at any time thereafter be devised given or bequeathed to the Corporation though not being investments or property authorised to be acquired under this Act or may disclaim any such investment or property and may accept and retain or refuse any new shares stock debentures or debenture stock in any company which may be offered to the Corporation in respect of any investment retained as aforesaid.

(6) Section 7 (Monies may be invested) of the Act of 1862 is hereby repealed.

4.—(1) From and after the passing of this Act the name of the Corporation shall be changed from the “ Royal School for Deaf and Dumb Children Margate ” to the “ Royal School for Deaf Children Margate ”. Change of
name of
Corporation.

(2) The change of name shall not affect any rights or obligations of the Corporation or render defective any legal proceedings by or against the Corporation and any legal proceedings that might have been continued or commenced against the Corporation by its former name may be continued or commenced against the Corporation by its new name.

(3) Any devise or bequest which would take effect in favour of the Royal School for Deaf and Dumb Children Margate under the will of any person whether dying before or after the passing of this Act and which may not have then taken effect shall be deemed to have been made to the Royal School for Deaf Children Margate and shall take effect in favour of the Royal School for Deaf Children Margate as fully and effectually as it would have taken effect in favour of the Royal School for Deaf and Dumb Children Margate if this Act had not been passed.

5. The costs charges and expenses preliminary to and of and incidental to the preparation obtaining and passing of this Act or otherwise in relation thereto shall be paid by the treasurer for the time being of the Corporation out of the funds of the Corporation. Costs of Act.



Table of Statutes referred to in this Act

Short title	Session and chapter
Asylum for the Deaf and Dumb Poor Act 1862	25 & 26 Vict. c. l.
Asylum for the Deaf and Dumb Poor Act 1883	46 & 47 Vict. c. lxxix.
Royal School for Deaf and Dumb Children Margate Act 1915	5 & 6 Geo. 5 c. ix.
British Nationality Act 1948... ..	11 & 12 Geo. 6 c. 56.

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*Royal School for Deaf Children
Margate Act, 1958*

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LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 6d. net

PRINTED IN GREAT BRITAIN